NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI, BENCH - II

C.A.(CAA)84/ND/2020

IN THE MATTER OF SCHEME OF AMALGAMATION :

AMONGST

ELLORA COMMOSALES PRIVATE LIMITED

... Applicant No. 1/Transferor Company

AND

AYEASHA VINCOM PRIVATE LIMITED

...Applicant No. 2/Transferor Company

AND

INDUS EDUINFRASTRUCTURE PRIVATE LIMITED

...Applicant No. 3/Transferor Company

AND

INDUS INFRA DEVELOPMENT PRIVATE LIMITED

...Applicant No. 4/Transferor Company

AND

PARAMITRA HOLDINGS LIMITED

... Applicant No. 5/Transferor Company

AND

BANSHIDHAR DEVELOPERS PRIVATE LIMITED

... Applicant No. 6/Transferor Company

AND

DHANTERASH TRADELINK PRIVATE LIMITED

...Applicant No.7/Transferor Company

AND

NILACHAL APPARTMENT PRIVATE LIMITED

... Applicant No. 8/ Transferor Company

AND

RANGMAHALA AGENCY PRIVATE LIMITED

...Applicant No. 9/Transferor Company

AND

SUBHDHAN MARKETING PRIVATE LIMITED

... Applicant No. 10/Transferor Company

AND

TOPLINE SUPPLIERS PRIVATE LIMITED

...Applicant No. 11/Transferor Company

AND

PARAM MITRA INVESTMENTS LIMITED

...Applicant No. 12/Transferor Company

WITH

SHREYANS FINLEASE PRIVATE LIMITED

...Applicant No. 13/Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on : 23.11.2020

Section: 230 to 232 of the Companies Act, 2013

CORAM

CH. MOHD SHARIEF TARIQ, HON'BLE MEMBER (JUDICIAL)

MR. L. N GUPTA, HON'BLE MEMBER (TECHNICAL)

PRESENT

For Applicants : CS Manish Gupta

ORDER

PER SHRI L. N. GUPTA, MEMBER (T)

Under consideration is the Application No. CA(CAA)84/ND/2020 filed under Sections 230 to 232 of the Companies Act, 2013. The prayer made is to dispense with convening and holding of the meeting of Shareholders and Creditors in relation to the Transferor and Transferee Companies.

2. That Ellora Commosales Private Limited (hereinafter referred as the "Transferor Company No.1") having CIN no. U51101DL2010PTC329088, is a private limited company incorporated under the Companies Act, 1956, on 16.03.2010. The registered office of the Transferor Company no.1 is situated at Flat no. 43, SFS Old Palam Marg, Basant Enclave Opp. 77, New Delhi, South Delhi-110057.

3. That Ayeasha Vincom Private Limited (hereinafter referred as the "Transferor Company No.2") having CIN no. U51909DL2010PTC329087 is a company incorporated under the Companies Act, 1956, on 13.03.2010. The registered office of the Transferor Company No.2 is situated at Flat no. 43, SFS Old Palam Marg, Basant Enclave Opp. 77, New Delhi, South Delhi-110057.

4. That Indus Eduinfrastructure Private Limited (hereinafter referred as the "Transferor Company No.3") having CIN no. U80903DL2010PTC 206148 is a company incorporated under the Companies Act 1956, on 22.07.2010. The registered office of the Transferor Company No.3 is situated at 16A, 3rd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi- 110015.

5. That Indus Infra Development Private Limited (hereinafter referred as the "Transferor Company No.4") having CIN no. U45400DL2010PTC 207148 is a company incorporated under the Companies Act 1956, on 17.08.2010. The registered office of the Transferor Company No.4 is situated at 16A, 3rd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi-110015.

6. That Paramitra Holdings Limited (hereinafter referred as the "Transferor Company No.5") having CIN U74899DL1994PLC062495 is a company incorporated under the Companies Act 1956, on 02.11.1994. The registered office of the Transferor Company no.5 is situated at 16A, 3rd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi -110015.

7. That Banshidhar Developers Private Limited (hereinafter referred as the "Transferor Company No.6") having CIN U45400DL2010PTC326326 is a company incorporated under the Companies Act 1956, on 17.02.2010. The registered office of the Transferor Company no.6 is situated at 129, Transport Centre, Rohtak Road, Punjabi Bagh, New Delhi-110035.

8. That Dhanterash Tradelink Pvt. Ltd. (hereinafter referred as the Transferor Company No.7") having CIN No. U51909DL2010PTC326328, is a company incorporated under the Companies Act 1956, on 16.02.2010. The registered office of the Transferor Company no.7 is situated at 129, Transport Centre, Rohtak Road, Punjabi Bagh, New Delhi-110035.

9. That Nilachal Appartment Private Limited (hereinafter referred as the "Transferor Company No.8") having CIN no. U45400DL2010PTC 326327 is a company incorporated under the Companies Act 1956. The registered office of the Transferor Company no.8 is situated at 129, Transport Centre, Rohtak Road, Punjabi Bagh, New Delhi-110035.

10. That Rangmahala Agency Private Limited (hereinafter referred as the "Transferor Company No.9") having CIN No. U51909DL2009PTC 334796 is a company incorporated under the Companies Act 1956, on 27.11.2009. The registered office of the Transferor Company No. 9 is situated at 16 A, 3rd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi-110015.

11. That Subhdhan Marketing Private Limited (hereinafter referred as the "Transferor Company No.10") having CIN No. U51909DL2010PTC 334797 its registered office at 16 A, 3rd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi-110015, is a company incorporated under the Companies Act 1956, on 16.02.2010. The registered office of the Transferor Company no.10 is situated at 16 A, 3rd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi-110015.

12. That Topline Suppliers Private Limited (hereinafter referred as the "Transferor Company No.11") having CIN No. U51909DL2010PTC334799, is a company incorporated under the Companies Act 1956, on 13.02.2010 The registered office of the Transferor Company no. 11 is situated at 16 A, 3rd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi – 110015.

13. That Param Mitra Investments Limited (hereinafter referred to as the "Transferor Company No.12") having CIN No. U67190DL2013PLC 251048. is a company incorporated under the Companies Act 1956, on 23.04.2013. The registered office of the Transferor Company no.12 is situated at 16 A, 3rd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi-110015.

14. That Shreyans Finlease Private Limited (hereinafter referred to as the "Transferee Company") having CIN U65910DL1996PTC278349, is a company incorporated under the Companies Act 1956, on 21.03.1996. The registered office of the Transferee Company is situated at 16 A, 2nd Floor, Najafgarh Road, Shivaji Marg, Moti Nagar, New Delhi-110015.

15. That the present Petition has been jointly preferred by all the Transferor and Transferee Companies. All the 'Transferer' and 'Transferee' Companies together are called 'Applicant Companies' hereinafter. That the Registered office of all the Companies is in Delhi and therefore, the jurisdiction lies with this Bench.

16. It is seen that the Board of Directors of all the Applicant Companies vide separate meetings held on 18.03.2020 had approved the Scheme of Amalgamation.

17. It is stated by the Applicant companies that the aforesaid Scheme of Amalgamation will result in :

a) Better, efficient and economical management,

b) Achieve cost savings, pooling of resources, reduction of corporate tiers and rationalization of the administrative expenses/services.

c) The amalgamation will enable the Applicant Companies to pool their financial, commercial and other resources and considerable synergy of operations would be achieved.

18. That all the Companies have filed their Affidavits on 07.10.2020 in compliance of Section 230(2)(a) of Companies Act 2013 submitting therein that the Applicant Companies are not under any prosecution/ investigation/inquiry under Companies Act 2013.

19. That the Applicant Companies have also placed on record Certificate from the Statutory Auditors conforming that their Accounting standards are in conformity with the provisions of Section 133 of the Companies Act, 2013.

20. That the Applicant Companies have filed their respective Memorandum of Association (MoAs) and Articles of Association (AoSs). The Applicant Companies had filed their latest Balance Sheet as on 31.03.2019.

21. That the position regarding the Applicant Company-wise no. of Shareholders & Creditors and their consent through Affidavits is summarised below:

Company	No. of Share holders	Percentage of Shareholders given Consent	No. of Unsecured Creditors	Percentage of Unsecured Creditors given Consent
Ellora Commosales Private Limited Applicant No.1 Company/ Transferor	2	100%	3	100%
Ayeasha Vincom Private Limited Applicant No.2/ Transferor Company	2	100%	3	100%
Indus Eduin Infrastructure Private Limited Applicant/ Transferor Company No.3	4	100%	Nil	Not Applicable
Indus Infra Development Private Limited Applicant/ Transferor Company No.4	9	100%	3	100%
Paramitra Holdings Limited Applicant/ Transferor Company No.5	9	100%	7	100%
Banshidhar Developers Private Limited Applicant/ Transferor Company No.6	2	100%	1	100%
Dhanterash Tradelink Private Limited Applicant/ Transferor Company No.7	2	100%	1	100%
Nilachal Appartment Private Limited Applicant/ Transferor Company No.8	2	100%	1	100%
Rangmahala Agency Private Limited Applicant/ Transferor Company No.9	2	100%	2	100%

Subhdhan Marketing Private Limited Applicant/ Transferor Company No.10	2	100%	2	100%
Topline Suppliers Private Limited Applicant/ Transferor Company No.11	2	100%	2	100%
Param Mitra Investments Limited Applicant/ Transferor Company No.12	9	100%	5	100%
Shreyans Finlease Private Limited Applicant No.13/ Transferee Company	3	100%	2	100%

22. That all the shareholders of the Applicant Companies have given 'no objection' to the Scheme on their respective affidavits. Therefore, the requirement of convening Meetings of the Shareholders in respect of all the Applicant Companies is dispensed with.

23. There are no unsecured creditors in Applicant Company No. 4. Therefore, the question of convening their meting does not arise. Further, the unsecured creditors for rest of the Applicant Companies have given 'no objection' to the Scheme on respective affidavits. Therefore, the Meetings of the Unsecured Creditors in respect of all the rest of the Applicant Companies is also dispensed with.

24. Since there are no Secured Creditors in any of the Applicant Companies, the requirement of convening their meeting does not arise.

25. The Application is **allowed** in the aforesaid terms.

S.d

(L. N. GUPTA)
MEMBER (T)

S.d

(CH. MOHD. SHARIEF TARIQ)
MEMBER (J)